

Contract Agreement

SaaS Cybersecurity Contract with DataGuard Enterprises

Title: Software as a Service (SaaS) Agreement - Cybersecurity Solutions

Parties Involved:

This Agreement is entered into by and between:

1. Vendor: SecureSoft Solutions Inc. (hereinafter referred to as "Provider"), having its principal office at 123 Cyber Lane, Tech City, USA.
2. Customer: DataGuard Enterprises Ltd. (hereinafter referred to as "Customer"), having its principal office at 456 Security Blvd, Innovation Park, USA.

Preamble:

This SaaS Agreement outlines the terms under which the Provider will supply cybersecurity software and related services to the Customer. This Agreement is executed on March 31, 2025.

1. Definitions:

- "Services": Refers to the cybersecurity software suite including threat monitoring, incident response, and compliance reporting.
- "Data": Customer's digital assets, files, and information processed using the Services.
- "Service Level Agreement (SLA)": Document specifying service quality standards.
- "Critical Incident": An event causing complete disruption of cybersecurity monitoring or data loss.
- "Business Day": Any day excluding weekends and public holidays.

2. Scope of Services:

The Provider agrees to deliver comprehensive cybersecurity monitoring, threat detection, automated

Contract Agreement

incident responses, and monthly vulnerability assessments as outlined in the SLA.

- The software suite will include SecureNet Pro, ThreatWatch AI, and DataShield Guardian.
- Monthly security reports will be delivered to the Customer's IT department.

3. Service Level Agreement (SLA):

- Availability: Provider guarantees an uptime of 99.95% per month.
- Support: 24/7 support for critical incidents via dedicated hotline and email.
- Response Time:
 - Critical Issues: 1 hour or less.
 - Major Issues: 4 hours.
 - Minor Issues: 24 hours.
- Scheduled Maintenance: Will occur on the first Sunday of each month from 2:00 AM to 4:00 AM.

4. Pricing and Payment Terms:

- Subscription Fee: \$20,000 per annum, billed annually.
- Additional Features: Enhanced Threat Intelligence at \$5,000 per year.
- Payment Due: Within 30 days of invoice.
- Late Payment: A 2% interest per month on overdue balances.

5. Data Protection and Security:

The Provider implements AES-256 encryption, multi-factor authentication (MFA), and continuous threat monitoring.

- Data Processing: Compliant with GDPR, CCPA, and local regulations.
- Data Backup: Daily backups stored securely at a separate data center.

Contract Agreement

6. Intellectual Property Rights:

- All software, documentation, and deliverables remain the exclusive property of the Provider.
- The Customer is granted a non-transferable, non-exclusive license to use the Services.

7. Confidentiality and Non-Disclosure:

- Both parties agree to maintain the confidentiality of proprietary data.
- Breach of confidentiality will result in immediate contract termination and potential legal action.

8. Liability and Indemnification:

- Limitation of Liability: Provider's liability is capped at the annual subscription fee.
- Indemnification: Customer agrees to indemnify the Provider against any third-party claims arising from unauthorized use of the Services.

9. Termination and Renewal:

- Initial Term: 1 year from the Effective Date.
- Automatic Renewal: Unless terminated with 60 days' prior notice.
- Early Termination: Subject to a 50% penalty of the remaining term's fees.
- Renewal Date: March 31, 2026.

10. Dispute Resolution:

- Governing Law: State of California.
- Arbitration: All disputes will be resolved through binding arbitration under the American Arbitration Association.
- Venue: San Francisco, CA.

Contract Agreement

11. Miscellaneous Provisions:

- Force Majeure: Neither party shall be liable for delays caused by natural disasters, war, or government actions.
- Severability: If any provision is deemed unenforceable, the remainder of the Agreement shall remain in effect.
- Entire Agreement: This document constitutes the complete Agreement between the parties.
- Amendments: Modifications must be signed by both parties.

Signatures:

Provider Representative: John Smith, CTO of SecureSoft Solutions Inc. Date: _____

Customer Representative: Alice Johnson, CIO of DataGuard Enterprises Ltd. Date:

Additional Clauses and Terms:

Clause 12: Security Incident Handling - In the event of a security breach, the Provider will notify the Customer within 4 hours and initiate a root cause analysis within 12 hours. Mitigation actions will follow within 24 hours.

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Contract Agreement

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Contract Agreement

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Contract Agreement

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Contract Agreement

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Contract Agreement

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